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TERMS & *Conditions*

These Terms & Conditions apply to all orders and bookings placed with Beyond Scrumptious, including cakes, cupcakes, desserts, dessert tables, live mini pancake stations and related food and event services.

By accepting a quotation, paying a requested deposit or payment, signing a Booking Agreement where applicable, or otherwise confirming a booking with Beyond Scrumptious, you confirm that you have had the opportunity to read, understand and agree to these Terms & Conditions.

These Terms & Conditions should be read together with the applicable quotation, invoice, booking confirmation and, where applicable, Booking Agreement.

1 BOOKINGS & PAYMENT

1.1	Orders and bookings are only confirmed once Beyond Scrumptious has accepted the order or booking, availability has been confirmed and the required payment has been received.
1.2	An enquiry, quotation or expression of interest does not guarantee availability. Acceptance of a quotation alone does not necessarily constitute confirmation of a booking.
1.3	A deposit or full payment may be required to confirm a booking. The amount required will be stated in the quotation, invoice, Booking Agreement or booking confirmation.
1.4	For orders with a total value of less than £100, Beyond Scrumptious may request full payment at the time of booking or payment in full before collection, delivery or the event date.
1.5	For larger bookings, a deposit may be required to secure the booking, with the remaining balance due by the payment date stated in the quotation, invoice or Booking Agreement.
1.6	Failure to make payment by the stated due date may result in the booking being cancelled. Where a booking is cancelled due to non-payment, Beyond Scrumptious reserves the right to recover reasonable costs or losses directly resulting from the cancellation, subject to applicable law.
1.7	Payment may be made by bank transfer or another payment method agreed in advance.

2 QUOTATIONS

2.1	All quotations are valid for 7 days from the date issued, unless otherwise stated.
2.2	Prices and availability are not guaranteed until the booking has been confirmed.
2.3	Beyond Scrumptious reserves the right to amend pricing or availability after the quotation validity period has expired. Where a quotation has expired, a new quotation may be issued based on current pricing and availability.

2.4 Once a booking has been confirmed, the agreed price will not be changed unless the customer requests additional products or services, changes guest numbers or service requirements, or additional costs arise which were not included in the original quotation and are subsequently agreed.

3 BESPOKE PRODUCTS & HANDMADE DESIGNS

3.1 All products are handmade and individually prepared.

3.2 Customers may provide inspiration images; however, Beyond Scrumptious does not guarantee exact replicas of another baker's work or designs.

3.3 Designs, colours, decorations, finishes, proportions and presentation may vary slightly due to the handmade nature of our products, availability of materials, seasonal ingredients and supplier differences.

3.4 Where a specific colour, decoration or design element is requested, Beyond Scrumptious will make reasonable efforts to achieve the requested result but cannot guarantee an exact match.

3.5 Minor variations resulting from the handmade nature of the product will not be considered a fault where the product remains substantially consistent with the agreed description.

4 CHANGES TO ORDERS

4.1 Any changes to an order should be communicated as early as possible. Changes are subject to availability and cannot always be guaranteed.

4.2 Changes requested within 48 hours of cake or dessert collection or delivery cannot be guaranteed.

4.3 Changes requested within 14 days of a dessert table or live mini pancake station booking cannot be guaranteed.

4.4 Changes may result in additional charges where they require additional ingredients, materials, products, labour, personalised items or preparation.

4.5 Changes to guest numbers, menu, package, service duration or other event requirements may affect the price, staffing, quantities and services provided.

4.6 Where a customer requests a significant change to a bespoke order after work or preparation has commenced, Beyond Scrumptious will advise whether the change is possible and whether additional charges apply.

5 LARGER & EVENT BOOKINGS

5.1 For bookings with a total value of £300 or more, or bookings involving live services, dessert tables, specialist venues, substantial bespoke work or significant advance preparation, Beyond Scrumptious may require the customer to complete and sign a separate Booking Agreement.

5.2 The Booking Agreement may record specific details including:

- Customer information
- Event date and venue
- Guest numbers
- Agreed products and services
- Service times
- Setup and pack-down requirements
- Staffing
- Delivery and travel arrangements
- Venue requirements
- Dietary requirements
- Total booking value
- Deposit and payment schedule
- Other booking-specific requirements

5.3 Where a Booking Agreement is required, the booking may not be considered fully confirmed until the required payment and completed agreement have been received.

5.4 The Booking Agreement forms part of the agreement between Beyond Scrumptious and the customer and should be read together with these Terms & Conditions.

5.5 For smaller orders, Beyond Scrumptious may use the quotation, invoice and acceptance of these Terms & Conditions without requiring a separate Booking Agreement.

6 CANCELLATION

Cancellation requests must be submitted in writing by email or WhatsApp.

Cancellation charges will be assessed reasonably, taking into account work already undertaken, costs already incurred, commitments made specifically for the booking and losses that Beyond Scrumptious could not reasonably avoid.

Beyond Scrumptious will take reasonable steps to reduce its losses where possible.

Nothing in this section is intended to exclude or restrict any statutory cancellation or consumer rights that apply.

6.1 Cakes & Desserts

Where a payment has been made to secure a booking, Beyond Scrumptious may retain an appropriate amount of that payment to cover reasonable costs and losses directly resulting from cancellation.

This may include:

- Work or preparation already completed
- Ingredients purchased specifically for the order
- Personalised items ordered or produced
- Bespoke decorations
- Edible prints or cake toppers
- Specially sourced items
- Preparation and administration time
- Other reasonable direct costs that cannot reasonably be recovered or reused

Where the amount retained is less than the amount already paid, any remaining balance will be refunded where appropriate.

6.2 Personalised & Bespoke Items

Personalised items, edible prints, cake toppers, bespoke decorations and specially sourced items may be non-refundable once they have been ordered or produced specifically for the customer and cannot reasonably be reused, returned or recovered.

6.3 Dessert Tables & Live Mini Pancake Stations

Live event bookings require Beyond Scrumptious to reserve the event date, staff, equipment, ingredients, stock, preparation time and operational capacity.

Cancellation may therefore result in reasonable costs and losses even where the event has not yet taken place.

If a customer cancels, Beyond Scrumptious may retain or charge an amount reasonably reflecting direct losses arising from the cancellation, including:

- Preparation already undertaken
- Ingredients or stock purchased specifically for the event
- Bespoke or personalised items ordered
- Staffing commitments
- Equipment reserved for the booking
- Preparation, administration and planning time
- Travel or other committed costs
- The reasonable loss of an opportunity to accept another booking for the same date
- Other reasonable direct costs or losses resulting from the cancellation

6.4 Where Beyond Scrumptious is able to reduce its losses, for example by securing another booking for the same date, this will be taken into account when assessing any cancellation charge.

Beyond Scrumptious will not seek to recover the same loss more than once.

6.5 Cancellation charges will be applied reasonably and will not be intended to operate as an unfair financial penalty.

7 ALLERGIES & DIETARY REQUIREMENTS

7.1 All products produced by Beyond Scrumptious are egg-free and gelatine-free.

7.2 Vegan options are available upon request and must be discussed and agreed at the time of booking.

7.3 Customers must clearly communicate all allergies, intolerances and dietary requirements before placing an order.

7.4 Our kitchen handles a variety of allergens, including but not limited to:

- Milk
- Wheat / Gluten
- Soy
- Peanuts
- Tree Nuts
- Sesame

7.5 Whilst reasonable precautions are taken during preparation, Beyond Scrumptious cannot guarantee an allergen-free environment or guarantee that products are completely free from cross-contact.

7.6 Customers with severe allergies should contact Beyond Scrumptious before ordering so that we can advise whether we are able to safely accommodate their requirements.

7.7 Beyond Scrumptious reserves the right to decline an order where we reasonably believe that a customer's dietary or allergy requirements cannot be safely accommodated.

7.8 Live Mini Pancake Stations

Mini pancakes are prepared using shared cooking equipment.

Unless specifically agreed otherwise in writing before the event, vegan pancakes are cooked on the same griddle used for standard pancakes. As a result, Beyond Scrumptious cannot guarantee that vegan pancakes are free from dairy cross-contact.

Customers requiring vegan or allergen-specific pancakes must communicate this requirement when booking.

8 COLLECTION, DELIVERY & PRODUCT CARE

8.1 Collection

Customers are responsible for collecting orders at the agreed date and time.

Collection times should be adhered to wherever possible. If you expect to be late, you must notify Beyond Scrumptious as soon as possible.

Late collection may affect the quality, freshness or condition of the product. Beyond Scrumptious cannot guarantee that a product collected late will remain in the same condition as it would have been at the agreed collection time.

Responsibility for the product transfers to the customer once the order has been collected.

8.2 Delivery

Delivery may be available for an additional charge, subject to availability, location and the requirements of the order.

The agreed delivery window may be affected by circumstances outside our reasonable control, including traffic, road closures, accidents, adverse weather or other unforeseen circumstances.

Customers must ensure that someone is available to receive the order at the agreed delivery location.

If nobody is available to receive the order, additional delivery charges may apply for a second delivery attempt where this is possible.

Responsibility for the product transfers to the customer once the order has been delivered to the agreed location.

Beyond Scrumptious cannot accept responsibility for damage caused after delivery, including damage resulting from customer handling, transportation, storage or display.

8.3 Safe Transportation

Customers collecting cakes are responsible for transporting them safely.

We recommend:

- Placing the cake box on a flat, stable surface
- Avoiding placing the cake on a car seat where possible
- Securing the box to prevent sliding
- Keeping the cake level at all times
- Avoiding sudden braking or sharp turns
- Driving carefully and avoiding unnecessary bumps
- Using air conditioning during warm weather where appropriate

Where possible, another person should hold or support the cake from underneath rather than placing pressure on the cake box itself.

Beyond Scrumptious cannot accept responsibility for damage caused during customer transportation.

8.4 Cake Care & Storage

Customers must follow any storage and care instructions provided with their order.

Where advised, cakes should be refrigerated and removed approximately one hour before serving.

Cakes and desserts should be kept away from direct sunlight, excessive heat and unsuitable environments.

Beyond Scrumptious cannot accept responsibility for deterioration, melting, damage or other changes caused by incorrect storage, transportation, handling or display after collection or delivery.

Leftover cake should be stored appropriately in an airtight container where suitable.

9 EVENT SERVICES

9.1 The quoted package includes the agreed services, products and serving period stated in the quotation or Booking Agreement.

9.2 Setup and pack-down time are separate from the agreed serving period.

9.3 Additional serving time requested on the day is subject to staff availability and may incur an additional charge.

9.4 Whilst every reasonable effort will be made to serve guests efficiently, Beyond Scrumptious cannot guarantee that every guest will be served where:

- Guest numbers exceed those originally booked
- Queues significantly delay service
- Guests arrive outside the agreed serving period
- Service is interrupted by circumstances beyond our reasonable control
- The agreed serving period has ended

9.5 The customer is responsible for ensuring that the number of guests communicated to Beyond Scrumptious is reasonably accurate.

9.6 Mini pancakes are prepared and served fresh during the agreed service period.

9.7 Pancakes are cooked on the same griddle unless a separate arrangement has been agreed in advance.

9.8 Cooking and serving times may vary depending on guest numbers, queue lengths, equipment performance and other circumstances. Beyond Scrumptious will make reasonable efforts to maintain an efficient service throughout the agreed serving period.

10 VENUE, OUTDOOR EVENTS & EQUIPMENT

10.1 Venue Requirements

For dessert tables and live dessert bookings, the customer is responsible for ensuring that the venue provides suitable:

- Access for loading and unloading
- Working and setup space
- Electricity where required
- Lighting where reasonably required
- Parking or loading access where applicable
- Venue permissions required for the service

10.2 The customer must inform Beyond Scrumptious of any venue-specific restrictions, access limitations, loading requirements, security procedures or other relevant requirements before the booking is confirmed.

10.3 Where access, electricity, space or other essential requirements are unavailable upon arrival due to circumstances attributable to the customer or venue, Beyond Scrumptious cannot be held responsible for any resulting reduction, delay or inability to provide the agreed service.

10.4 Parking charges, congestion charges, tolls or other venue-related costs may be included in the quotation or charged separately where agreed in advance.

10.5 **Outdoor Events**

Outdoor dessert stations must have suitable shelter and protection from rain, excessive heat, direct sunlight and strong winds.

The customer is responsible for arranging suitable weather protection unless otherwise agreed.

Beyond Scrumptious reserves the right to suspend, relocate or cease service where weather or environmental conditions present a reasonable risk to food safety, staff safety, customers or equipment.

Where service cannot safely continue due to conditions beyond our reasonable control, Beyond Scrumptious will use reasonable endeavours to provide an appropriate alternative where possible.

10.6 **Equipment**

All equipment supplied by Beyond Scrumptious remains the property of Beyond Scrumptious at all times.

Customers must take reasonable care to ensure that equipment is not damaged, moved, tampered with or misused by guests, venue staff or third parties.

Where equipment is lost or damaged beyond reasonable wear and tear due to the actions or negligence of the customer, guests, venue staff or other third parties under the customer's responsibility, reasonable repair or replacement costs may be charged.

11 PHOTOGRAPHY & MARKETING

11.1 Beyond Scrumptious may photograph completed cakes, desserts, dessert tables and event setups for use in our portfolio, website and social media.

11.2 We will make reasonable efforts to avoid photographing identifiable guests without appropriate permission.

11.3 If you do not wish your order or event setup to be photographed for marketing purposes, please notify Beyond Scrumptious in writing before the order is completed or the event takes place.

12 CIRCUMSTANCES BEYOND OUR CONTROL

12.1 Beyond Scrumptious shall not be liable for any delay, interruption or failure to perform its obligations where this arises from circumstances beyond our reasonable control.

12.2 This may include, but is not limited to:

- Severe weather
- Road closures
- Accidents
- Vehicle breakdown
- Illness or injury
- Power outages
- Supplier failures
- Venue closure or restrictions
- Government restrictions or requirements
- Other unforeseen circumstances beyond our reasonable control

12.3 Where reasonably practicable, Beyond Scrumptious will use reasonable endeavours to rearrange the booking or offer an alternative date or reasonable alternative solution.

12.4 Nothing in this section removes any statutory rights a customer may have.

13 QUALITY & COMPLAINTS

13.1 Beyond Scrumptious takes pride in the quality of its products and services.

13.2 If you have a concern about an order, you should contact Beyond Scrumptious as soon as reasonably possible after collection, delivery or the event.

13.3 Where appropriate, customers may be asked to provide photographs or other relevant information to help us investigate the issue.

13.4 Nothing in these Terms & Conditions limits or removes any statutory rights you may have under applicable UK consumer law.

14 LIABILITY & CONSUMER RIGHTS

14.1 Nothing in these Terms & Conditions excludes or limits any liability or rights that cannot legally be excluded or limited under UK law.

14.2 This includes statutory rights relating to the quality of goods and services and any liability which cannot lawfully be excluded.

14.3 Beyond Scrumptious shall not be liable for indirect or consequential losses, loss of profits or loss of business except where such liability cannot legally be excluded.

14.4 Nothing in these Terms & Conditions excludes or limits liability for death or personal injury caused by negligence, fraud or fraudulent misrepresentation, or any other liability which cannot legally be excluded.

14.5 Nothing in these Terms & Conditions is intended to remove or restrict any statutory rights you have as a consumer.

14.6 Where applicable, goods will be of satisfactory quality, fit for purpose and as described, and services will be provided with reasonable care and skill, in accordance with applicable UK consumer law.

14.7 If any provision of these Terms & Conditions is found to be unfair or unenforceable under applicable law, that provision will be interpreted or modified to the minimum extent necessary to make it lawful, and the remaining provisions will continue to apply.

15 AMENDMENTS TO THESE TERMS & CONDITIONS

15.1 Beyond Scrumptious may update these Terms & Conditions from time to time.

15.2 Any updated Terms & Conditions will apply to bookings confirmed after the updated version has been published.

15.3 The version applicable to a booking will be the version in force on the date the booking is confirmed.

15.4 Changes made after a booking has been confirmed will not retrospectively alter the terms agreed for that booking unless required by law or agreed with the customer.

16 ACCEPTANCE OF TERMS

16.1 By accepting a quotation, paying the requested deposit or payment, signing a Booking Agreement where applicable, or otherwise confirming a booking with Beyond Scrumptious, you confirm that:

- You have had the opportunity to read these Terms & Conditions
- You understand and agree to them
- You have provided accurate information relating to your order or event
- You understand that the specific details of your booking will be set out in your quotation, invoice and/or Booking Agreement

16.2 For bookings requiring a Booking Agreement, the customer may be required to sign or electronically accept the agreement before the booking is confirmed.

16.3 A copy of these Terms & Conditions will be made available to the customer before payment and can be provided upon request.

17 GOVERNING LAW

17.1 These Terms & Conditions are governed by the laws of England and Wales.

17.2 Any dispute will be subject to the jurisdiction of the courts of England and Wales, subject to any mandatory consumer rights that may apply.

CONTACT

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